

**Superior Court of the State of California
County of Orange**

**Tentative Rulings
Law and Motion Calendar
Department C23
Honorable David J. Hesseltine**

Hearing Date and Time: September 11, 2026, at 10:00 a.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it is that party's responsibility to provide a court reporter, unless the party has a fee waiver and timely requests a court reporter in advance of the hearing (see link at end of this paragraph for further information). Parties must comply with the Court's policy on the use of privately retained court reporters, which may be found at the following link: [Civil Court Reporter Pooling](#). For additional information regarding court reporter availability, please visit the court's website at [Court Reporter Interpreter Services](#).

Tentative Rulings: The court endeavors to post tentative rulings on the court's website no later than 12:00 noon on the date of the afternoon hearing. Tentative rulings will be posted case by case on a rolling basis as they become available. Jury trials and other ongoing proceedings, however, may prevent the timely posting of tentative rulings, and a tentative ruling may not be posted in every case. Please do not call the department for tentative rulings if one has not been posted in your case.

The court will not entertain a request to continue a hearing or any document filed after the court has posted a tentative ruling.

Submitting on Tentative Rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5223. Please do not call the department unless **ALL** parties submit on the tentative ruling. If all sides submit on the tentative ruling and advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under California Rules of Court, rule 3.1312.

Non-Appearances: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also may make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C23 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C23 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at

<https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5223 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

NO FILMING, BROADCASTING, PHOTOGRAPHY, OR ELECTRONIC RECORDING IS PERMITTED OF THE VIDEO SESSION PURSUANT TO CALIFORNIA RULES OF COURT, RULE 1.150 AND ORANGE COUNTY SUPERIOR COURT RULE 180.

#	Case Name Case Number	Tentative
1.	<i>Pinesett v. Coral Motel, et al.</i> 2021-01179977	Before the court is the continued hearing on the Order to Show Cause Re: Sale of Dwelling, issued by this court on July 6, 2026, regarding the property located at 7891 Whitaker Street, Buena Park, California 90621 (Property). The Order to Show Cause was issued pursuant to the application of assignee of record and judgment creditor, Judgment Recovery Assistance, LLC (Judgment Creditor) for an order to sell the interest of defendant and judgment debtor Balubhai Patel (Judgment Debtor) in the Property to satisfy the judgment entered in this case. On August 27, 2026, the Order to Show Cause came on for hearing. The day before the hearing, Judgment Debtors filed a second notice of removal to federal court. Due to this filing, the court continued the hearing to determine jurisdiction and invited the parties to submit briefs on the issue of jurisdiction. The court received briefs from both parties. Judgment Creditor is correct the second notice of removal is untimely under 28 U.S.C. section 1446. Subdivision (b)(1) of section 1446 requires the notice of removal to be filed within 30 days after defendant is served with the initial pleading or summons. That deadline has long passed. The removal also is untimely under subdivision (b)(3) of

	section 1446 which states, “if the case stated by the initial pleading is not removable, a notice of removal may be filed within 30 days after receipt by the defendant, through service or otherwise, of a copy of an amended pleading, motion, order or other paper from which it may first be ascertained that the case is one which is or has become removable.” (28 U.S.C. § 1446(b)(3).) Here, the second notice of removal is based on this court’s June 22, 2026 order setting the Order to Show Cause re: Sale of Dwelling for hearing on August 27, 2026. Judgment Debtors appeared at the June 22, 2026 hearing through their counsel, Mr. Weiser. Moreover, Judgment Debtors were served with the formal Order to Show Cause on July 21, 2026. (ROA 210.) The notice of removal filed on August 26, 2026, is therefore untimely. Judgment Debtors did not address the untimeliness argument in their reply brief regarding jurisdiction. The second notice of removal also is frivolous and duplicative and thus does not divest the court of jurisdiction. Judgment Creditor cites <i>ClipperJet Inc. v. Tyson</i> (2019) 38 Cal.App.5th 521 in which our local Court of Appeal held, “We agree with the above authorities that recognize a narrow exception to the general rule that state courts cannot proceed further when a defendant removes the case. We recognize this limited exception where there is a frivolous or duplicative notice of removal.” (<i>Id.</i> at p. 528.) The <i>ClipperJet</i> court further explained, “Under the specific circumstances of this case, we conclude the second removal was both frivolous and duplicative, and for that reason the court retained jurisdiction to rule on defendant's untimely motion to strike. We decline defendant's implicit invitation to condone his attempt to game the system and to trifle with the court. We are confident Congress did not intend to allow this conduct.” (<i>Id.</i> at p. 529.) Here, Judgment Debtors’ first notice of removal was based in part on the Federal Civil Rights Removal statute, 28 U.S.C. section 1443. Judgment Debtors argued removal was proper because this case “concerns the constitutionality and propriety of post-judgment collection actions and proceedings” related to the court’s issuance of the Order to Show Cause re: Sale of Dwelling. (See January 21, 2026 Notice of Removal at ROA 169.) The district court found Judgment Debtors failed to demonstrate they meet any of the criteria under Section 1443 as Judgment Debtors merely stated they removed the case under Section 1443. Judgment Debtors’ second notice of removal is again based on Section 1443. Judgment Debtors assert removal is
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	made “because the State Case trial court has, in effect, rejected the mandatory automatic stay of proceedings required by the United States Supreme Court case of <i>Coinbase, Inc. v Bielski</i>, 599 U.S. 736 (2023), which Defendants argued applies while an appeal of a remand determination is pending, and set another OSC hearing to sell CM, the Defendants' Real Property for August 27, 2026, this despite the fact that on August 21, 2026, the Defendants filed a Notice of Appeal of the State Case trial court order to hear the OSC” (See August 26, 2026 Notice of Removal at ROA 220.) The second notice of removal again involves “post-judgment collection actions and proceedings” related to this court’s issuance of the same Order to Show Cause re: Sale of Dwelling. Furthermore, Judgment Debtors again summarily state removal is made under Section 1443 without any discussion of how they meet the criteria under Section 1443. Moreover, this court has already determined there is no automatic stay of proceedings pending Judgment Debtors’ appeal of the remand order. (See ROA 202; see also, <i>California by and through Harrison v. Express Scripts, Inc.</i> (9th Cir. 2025) 139 F.4th 763, 766, 768, & fn. 2 [limiting application of <i>Coinbase</i> and finding appeal of district court’s remand order did not result in automatic stay of litigation pending appeal]; <i>People v. Bhakta</i> (2006) 135 Cal.App.4th 631, 636 [“The appeal of a remand order does not deprive the state court of jurisdiction unless a stay is obtained from the federal court”]; <i>Martinez v. Landry’s Restaurants, Inc.</i> (2018) 26 Cal.App.5th 783, 794-795.) In terms of Judgment Debtors’ notice of appeal of this court’s June 22, 2026 order setting the Order to Show Cause, Judgment Debtors have not shown this is an appealable order. Judgment Debtors contend the Order is appealable under Code of Civil Procedure section 904.1(a)(2) for orders made after a judgment. “However, not every order following a final judgment is appealable.” (<i>Marriage of Olson</i> (2015) 238 Cal.App.4th 1458, 1462.) “To be appealable, a postjudgment order must either affect the judgment or relate to it by enforcing it or staying its execution. [Citation.] In particular, postjudgment orders that lack[] finality in that they [are] also preparatory to later proceedings fail this test and are not appealable.” (<i>Ibid.</i>, internal quotations and citations omitted; see also, <i>Marriage of Ellis</i> (2002) 101 Cal.App.4th 400, 403 [a domestic relations postdissolution order determining the trial court had authority to evaluate and
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		divide an ex-spouse's health insurance medical subsidy as an item of community property was not appealable because "it is only preliminary to actually doing so"].) Similarly, here, the court's June 22, 2026 order setting an Order to Show Cause re: Sale of Dwelling is merely preparatory and preliminary to an actual order for sale of the dwelling. It would thus appear the June 22, 2026 order is not appealable and no stay would attach. (See The Rutter Group, Cal. Prac. Guide Civ. App. & Writs (Dec. 2025 Update) ¶ 7:2.2 [No stay is affected by an improper appeal. Thus, an untimely appeal or attempted appeal from a nonappealable judgment or order has no effect on trial court jurisdiction, citing <i>Hearn Pac. Corp. v. Second Generation Roofing Inc.</i> (2016) 247 Cal.App.4th 117, 146-147 and <i>Pazderka v. Caballeros Dimas Alang, Inc.</i> (1998) 62 Cal.App.4th 658, 663.].) Even if the June 22, 2026 order could be deemed a sufficiently final order regarding sale of real property, such order is stayed on appeal only by posting a bond or undertaking. (Code Civ. Proc., § 917.4.) Here, there is no evidence any bond or undertaking was posted. In Judgment Debtors' brief filed September 8, 2026, Judgment Debtors cite authority reiterating the general rule that the filing of a notice of removal divests the state court of jurisdiction and any subsequent proceedings and judgments by the state court are void. (See <i>Roman Catholic Archbishop of San Juan v Acevedo Feliciano</i> (2020) 140 S.Ct. 696, 700; <i>Fritsch v Swift Transportation Co. of Arizona LLC</i> (9th Cir. 2018) 899 F.3d 785, 788; <i>Maseda v Honda Motor Co.</i> (11th Cir. 1988) 861 F.2d 1248, 1254-1255.) None of these cases addressed the filing of an untimely, frivolous, or duplicative notice of removal. Judgment Debtors also contend even if <i>ClipperJet</i> remains good law, it is inapplicable to this removal based on new post-remand facts. This argument fails for the reasons discussed above. Based on the foregoing, the court finds the second notice of removal is frivolous and duplicative of the first and therefore the court retains jurisdiction to hear the Order to Show Cause re: Sale of Dwelling. At the hearing, the court will hear oral argument from counsel regarding the foregoing jurisdictional issues. Assuming the court stays with its tentative ruling, however, the parties should be prepared to proceed with the hearing on the Order to Show Cause as the court told the parties it would do if it concluded it had jurisdiction.
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